

Calendar Line 1

Case Name: *Hamid Khazaeli v. Julie Cliff et al.*

Case No.: 24CV448245

I. BACKGROUND

Plaintiff Hamid Khazaeli brings this legal malpractice action against defendants Julie Cliff, Esq. (“Cliff”) and The Law Office of Julie B. Cliff (collectively, “Defendants”).

According to the allegations of the first amended complaint (“FAC”), in or around October 2016, Plaintiff obtained a money judgment in the amount of \$5,147,898 for employment discrimination. (FAC, ¶ 5.) On January 17, 2019, Plaintiff filed a third amended complaint alleging six causes of action. (*Ibid.*) In or around March 2020, Plaintiff received an adverse judgment. (*Ibid.*) On August 20, 2020, Plaintiff filed a notice of appeal in the trial court. (*Ibid.*)

In August 2022, Defendants, on behalf of Plaintiff, filed a motion to augment and Appellant Opening Brief in the Sixth District Court of Appeal. (FAC, ¶ 6.) In the process of representing Plaintiff, Defendants committed “a multitude of wrongdoings and legal errors, irreparably damaging and prejudicing Plaintiff’s case.” (FAC, ¶ 7.) Because of these wrongdoings, Plaintiff was unable to collect on his valid money judgment in the amount of \$5,147,898, and instead collected nothing. (FAC, ¶ 8.)

On October 23, 2024, Plaintiff filed the operative FAC, asserting the following causes of action against Defendants:

- 1) Professional Negligence;
- 2) Breach of Fiduciary Duty;
- 3) Breach of Contract; and
- 4) Conversion.

On December 9, 2024, Defendants filed a general denial and asserted nine affirmative defenses. On December 19, 2024, Plaintiff filed a demurrer to Defendants’ answer. Defendants oppose. Plaintiff filed a reply. Both parties appear in pro per.¹

¹ “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 [internal citations omitted]; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985 “[a] doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation”]; see also *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 416.)

II. LEGAL STANDARD

A plaintiff may demur to a defendant's answer within 10 days of being served with the answer (Code Civ. Proc., § 430.40, subd. (b)) on three grounds: (1) failure to state facts sufficient to constitute a defense; (2) uncertainty; or (3) failure to state whether a contract alleged in the answer is written or oral. (Code Civ. Proc., § 430.20.)

The demurrer may be to the whole answer or to any one or more of the several defenses set up in the answer. (Code Civ. Proc., § 430.50, subd. (b).) The plaintiff may not, however, demur to part of a defense and, in order to determine the sufficiency of a defense, it must be considered as a whole. Each defense must be considered separately without regard to any other defense, and one defense does not become insufficient because it is inconsistent with any other parts of the answer. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733 (*South Shore Land Co.*)).

The critical inquiry when a plaintiff demurs to an answer is whether the answer raises a defense to plaintiff's stated cause of action. (*Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 879-880.) Affirmative defenses presented in an answer must plead ultimate facts to the same extent as required in a complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.)

A general denial places at issue the material allegations of the complaint. (*Advantec Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627; see also *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 383 (*FPI Development*)). "A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense." (Code Civ. Proc., § 431.10, subd. (a).)

An affirmative defense is "new matter" not in issue under a general denial. (See *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 239 (*Harris*) ["if the onus of proof is thrown upon the defendant, the matter to be proved by him is [a] new matter"].) "New matter" must be specifically pled in the answer. (*Ibid.*) Thus, "affirmative defenses cannot be pled as mere legal conclusions but must instead be alleged with as much factual detail as the allegations of a complaint." (*Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 813 (*Quantification Settlement*)).

"The determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action." (*South Shore Land Co., supra*, 226 Cal.App.2d at p. 732.) "[T]he demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer." (*Id.* at p. 733.) Unlike a demurrer to the complaint, "the defect in question need not appear on the face of the answer" as "[t]he determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (*Ibid.*)

III. MEET AND CONFER EFFORTS

As a preliminary matter, Defendants argue that Plaintiff has not satisfied meet and confer obligations as required by Code of Civil Procedure section 430.41. (See Opposition, pp. 3-6.)

Code of Civil Procedure section 430.41 requires a demurring party to meet and confer with the party who filed the challenged pleading to seek informal resolution of the demurring party's objections. (Code Civ. Proc., § 430.41, subd. (a).) The meet and confer must be conducted in person or by telephone, and must address each cause of action or affirmative defense to be included in the demurrer. (*Ibid.*) "The parties shall meet and confer at least five days before the date the responsive pleading is due." (Code Civ. Proc., §430.41, subd. (a)(2).) If these efforts fail, the demurring party must file and serve a declaration regarding the meet and confer process with the demurrer. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Defendants assert that Plaintiff emailed Cliff regarding his intent to file a demurrer, she responded and notified Plaintiff of a recent stroke and her ability to communicate only over email. Plaintiff responded by directing Cliff to seek accommodations. Cliff stated that she was aware of the ADA. Instead of accommodating her request to communicate by email, Plaintiff disregarded her email and filed his demurrer.

The emails attached to Cliff's declaration indicate that she explained her situation, that she was temporarily verbally disabled, and stated that she was available to meet and confer via email whenever it would be convenient. (See Cliff Decl., Ex. A.) In Plaintiff's declaration, attached to his demurrer, he indicates he made a request to meet and confer and that Defendants did not respond to the request according to the methods in the code. In Plaintiff's reply, he states that the code only authorizes meet and confer via phone or in person.

The purpose of meet and confer efforts is for the parties to make a reasonable and good faith attempt at working out their differences informally. Courts routinely determine that meet and confer efforts made via email are sufficient for purposes of the Code of Civil Procedure when done in good faith and for good cause. Here, Plaintiff's rigid posture regarding meet and confer efforts in response to Cliff's proffered disability regarding oral communication was contrary to the spirit of both the law and the courtesy to be afforded in professional settings. It is also difficult to glean a good faith effort at informal resolution from Plaintiff's pronouncement, "I will be doing most of the talks [sic] and you will either accept or not to resolve the issues in the answer." In the context of meeting and conferring, "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1439.)

Regardless, a court's determination that the meet and confer process was insufficient is not a ground to sustain or overrule a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4); see also *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.) The Court declines to make findings or to issue sanctions related to the parties' meet and confer efforts. At this point, the Court simply reminds the parties that they must undertake all meet and confer obligations set forth in Code of Civil Procedure with sincerity and good faith and, importantly, not as a mere superficial obligation, but in a deliberate effort reach agreements and avoid or minimize court involvement.

IV. DEMURRER TO THE ANSWER

Plaintiff demurs to Defendant's answer on the ground it is uncertain and fails to state facts sufficient to constitute a defense.

a. Uncertainty

Uncertainty is a disfavored ground for demurrer; it is typically sustained only where the pleading is so unintelligible and uncertain that the responding party cannot reasonably respond to or recognize the claims alleged against it. (See *Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) "[T]he failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty." (*Fenton v. Groveland Community Services Dist.* (1982) 135 Cal.App.3d 797, 809, overruled on other grounds by *Katzberg v. Regents of University of California* (2002) 29 Cal.4th 300, 328, fn. 30.)

Here, Plaintiff's arguments in support of uncertainty are largely intertwined with points raised in connection with the general demurrer for failure to state facts. In other words, there are no separate and distinct arguments raised to support a special demurrer for uncertainty. Further, the affirmative defenses, each identified specifically by name, do not appear to be so vague, ambiguous, or uncertain that Plaintiff cannot reasonably respond to them. To the extent there is any such uncertainty, the parties can clarify those ambiguities utilizing civil discovery procedures. (See *Davies v. Superior Ct.* (1984) 36 Cal.3d 291, 299 [purpose of civil discovery is to take game element out of trial preparation and assist parties in obtaining facts and evidence necessary for expeditious resolution of their dispute].)

Consequently, the demurrer to the 1st through the 9th affirmative defenses on the ground of uncertainty is OVERRULED.

b. Failure to State Sufficient Facts

Plaintiff argues each affirmative defense consists only of legal conclusions and fails to allege sufficient facts to constitute a valid defense.

i. First and Eighth Affirmative Defenses – Failure to State a Claim and Vagueness and Uncertainty

Defenses based on the failure to state a cause of action or uncertainty of the allegations do not require facts to be pled in support thereof; because they contradict the material allegations of the complaint, they do not raise new matter. (See Code Civ. Proc. § 430.20; *Harris, supra*, 56 Cal.4th at p. 239.)

The Court OVERRULES the demurrer to the first affirmative defense and the eighth affirmative defense.

ii. Second Affirmative Defense – Doctrine of Estoppel

The law requires a defendant to allege sufficient facts in support of each affirmative defense. Here, there are no allegations of binding arbitration in the FAC and the parties'

agreement is not attached to the pleading or a proper subject of judicial notice, thus, it raises new matter. The affirmative defense is devoid of facts establishing why estoppel is applicable. (See *Schrader Iron Works, Inc. v. Lee* (1972) 26 Cal.App.3d 621, 636 [“Adverting to the doctrine of estoppel, we note that its application requires the establishment of four elements, to wit: ‘(1) that the party to be estopped must be apprised of the facts; (2) he must intend that his conduct will be acted upon, or act in such a manner that the party asserting the estoppel could reasonably believe that he intended that his conduct to be acted upon; (3) the party asserting the estoppel must be ignorant of the true state of the facts; and (4) he must rely upon the conduct to his injury.’”].)

The Court SUSTAINS the demurrer to the second affirmative defense with 10 days leave to amend.

iii. Third Affirmative Defense – Statute of Limitations

All that is necessary to state an affirmative defense of statute of limitations is to specify the applicable sections; no additional facts are required. (See Code Civ. Proc., § 458; see also *Brown v. World Church* (1969) 272 Cal.App.2d 684, 691 [“It is necessary for defendant who pleads the statute of limitations to specify the applicable section, and, if such section is divided into subdivisions, to specify the particular subdivision or subdivisions thereof.”].) Here, the third affirmative defense indicates the sections and subdivisions of the Code of Civil Procedure that are applicable.

The Court OVERRULES the demurrer to the third affirmative defense.

iv. Remaining Affirmative Defenses

The Court SUSTAINS the demurrer to the fourth (waiver), fifth (laches), sixth (doctrine of unclean hands), seventh (doctrine of unjust enrichment), and ninth (consent) affirmative defenses with 10 days leave to amend. Defendants fail to allege any facts to support any of these affirmative defenses and simply rely on conclusory statements. (See *FPI Development, supra*, 231 Cal.App.3d at 384 [affirmative defenses must not be pled as “terse legal conclusions,” but “rather...as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint’.”]. As stated above, an affirmative defense is not well-pled unless it includes ultimate facts to support assertions of the same. (See *FPI Development, supra*, 231 Cal.App.3d at 384.) Defendant fails to do that here. Thus, the fourth, fifth, sixth, seventh, and ninth affirmative defenses cannot survive demurrer. (See *Westly v. Board of Administration* (2003) 105 Cal.App.4th 1095, 1117.)

V. CONCLUSION AND ORDER

The demurrer to the answer and each of its affirmative defenses on the ground of uncertainty is OVERRULED. The demurrer to the first, third, and eighth affirmative defenses for failure to state sufficient facts is OVERRULED.

The demurrer to the second, fourth, fifth, sixth, seventh, and ninth affirmative defenses for failure to state sufficient facts is SUSTAINED with 10 days leave to amend.

The Court will prepare the final order.

- oo0oo -

Calendar Line 2, 3, and 4

Case Name: *Monar, LLC v. Kenneth Rodrigues & Partners, Inc., et al.*

Case No.: 24CV442463

Before the Court are Plaintiff/Cross-Defendant Monar, LLC's ("Monar" or "Plaintiff" or "Cross-Defendant") (1) demurrer to the Cross-Complaint ("Cross-Complaint") filed by Defendants/Cross-Complainants Kenneth Rodrigues & Partners, Inc. and Kenneth Rodrigues (collectively, "KRP" or "Cross-Defendants"), (2) motion to strike portions of the Cross-Complaint, and (3) motion to compel responses to Form Interrogatories ("FI"), Set One. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. Background

A. Complaint

This is an action for professional negligence arising out of the design work for a new building. According to the allegations of the Complaint, on May 1, 2015, KRP, an architectural and professional design firm, and Monar's predecessor in interest, Oscar Bakhtiari doing business as Bakhtiari Auto Group ("BAG"), entered into a written agreement entitled "Proposal for the Schematic Design, Design Development Construction Document Phases" for the "Stevens Creek Subaru Project" (the "Design Agreement"). (Complaint, ¶ 10 and Exhibit A.) The Stevens Creek Subaru Project (the "Project") involved the design for new construction of a three-story auto dealership building with roof-deck parking and related facilities on real property owned by Monar and located at 3215, 3221 and 3225 Stevens Creek Boulevard in San Jose (collectively, the "Property"). (*Id.*)

The Design Agreement (particularly, the "Scope of Work") required KRP to: (a) Prepare Schematic Design documents and drawings (i.e., plans, elevations and sketches) for the Project, including but not limited to site plans, floor plans, roof plans, building sections and elevations; (b) Prepare Design Development documents based on the approved Schematic Design; (c) Provide Construction Documents based on the approved Design Development documents and a Project budget and schedule, and including drawings and specifications that establish in detail the quality level of systems and materials, as well as detailed requirements for construction and submittal to building department agencies; (d) Assist Owner with preparation of bidding documents, respond to building department comments thereon, and coordinate preparation of final permit submittals; (e) Work with the general contractor to achieve Owner's budget for the Project; and (f) Provide construction administration service to Owner.² (Complaint, ¶ 11.) The Design Agreement set forth a preliminary schedule for delivery of the Schematic Design documents and the Design Development documents at three and four months, respectively. (*Id.*, ¶ 12.) KRP prepared and delivered to Monar various aspects of the Plans on June 20, July 29 and August 16, 2026, well over a year after the date of the Design Agreement. (*Id.*, ¶ 13.)

² The Schematic Design documents, Design Development Documents and Construction Documents will be collectively referred to as the "Plans."